



Stephen Cooke <stephencooke.c@gmail.com>

Fwd: Legal letter for EMFIT1049 sent on 25-09-2025 has been approved.

4 messages

Jim Fournarakis <jim@ecollect.com.au>
To: stephencooke.c@gmail.com

Mon, Sep 29, 2025 at 6:14 AM

----- Forwarded message -----

From: **ECLegal Info** <info@eclegal.com.au>
Date: Mon, Sep 29, 2025 at 12:01 PM
Subject: Legal letter for EMFIT1049 sent on 25-09-2025 has been approved.
To: Jim Fournarakis <jim@ecollect.com.au>

Dear Jim

Please find attached approved legal letter for EMFIT1049 which was submitted on 25-09-2025.

Kind Regards,
eCollect.com.au

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Regards,

Jim Fournarakis | Senior Account Manager

Direct Tel: 03 8611 2674

Email: jim@ecollect.com.au | Direct Fax: 03 8611 2699

Level 9, 461 Bourke Street MELBOURNE VIC 3000 | www.eCollect.com.au



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Notice_of_Intent_to_Sue_-_21_days_-_Gyms250925130224458.pdf
146K

Stephen Cooke <stephencooke.c@gmail.com>
To: Jim Fournarakis <jim@ecollect.com.au>

Mon, Sep 29, 2025 at 4:36 PM

Dear Sir/Madam,

I refer to your correspondence regarding the alleged debt under Ref **EMFIT1049**.

I dispute this debt in full.

Please see the attached email chain (*EMF_Membership_Cancellation_Emails_StephenCooke.pdf*) between myself and EMF Member Support beginning **7 May 2025**. This correspondence clearly shows that I:

- Requested cancellation of my membership on **7 May 2025**;
- Was provided with a cancellation form link which did not function;
- Requested alternative methods to complete the cancellation, which were not provided;

- Was overseas at the time, making in-person resolution impossible;
- Was on a **no-contract membership**, making the claimed notice period and subsequent charges unreasonable.

The failure to process my valid cancellation request was entirely due to EMF's delay and refusal to provide a working cancellation method. Any dishonour fees or subsequent charges are therefore not payable by me.

Further, collection charges of \$27.50 and \$44.00 are **not enforceable** under Australian Consumer Law and cannot be added to any alleged debt without a court order.

Accordingly:

- I do not owe the alleged debt.
- Under the **ACCC/ASIC Debt Collection Guidelines**, you must cease all collection activity while this matter is in dispute.
- Any further harassment will be reported to **NSW Fair Trading** and the **ACCC**.

Please confirm in writing that you have closed this file.

Yours faithfully,
Stephen Christopher Cooke

[Quoted text hidden]



EMF_Membership_Cancellation_Emails_StephenCooke.pdf
260K

Jim Fournarakis <jim@ecollect.com.au>
To: stephencooke.c@gmail.com

Thu, Oct 9, 2025 at 1:00 AM

Hi

Please see the reply from the gym below.

I can waive the added fee, but to close the file, you will need to pay \$342.54.

Please advise if you accept and if you need a payment plan?

----- Forwarded message -----

From: **EMF Memberships** <memberships@emfpc.com.au>
Date: Tue, Oct 7, 2025 at 11:15 AM
Subject: Re: Legal letter for EMFIT1049 sent on 25-09-2025 has been approved.
To: Jim Fournarakis <jim@ecollect.com.au>

Hi Jim,

Not yet – please continue to try for all funds

The process was outlined and given to him on multiple occasions.

From: Jim Fournarakis <jim@ecollect.com.au>

Date: Thursday, 2 October 2025 at 8:52 AM

To: EMF Memberships <memberships@emfpc.com.au>

Subject: Fwd: Legal letter for EMFIT1049 sent on 25-09-2025 has been approved.

Hey

Would we be able to accept the date of the email request to cancel and charge him what was owing at the time and any notice period fee?

I can see you guys sent the form but I can also see he responded advising he was overseas at the time and it wasn't working.

[Quoted text hidden]

[Quoted text hidden]

Jim Fournarakis <jim@ecollect.com.au>

To: stephencooke.c@gmail.com

Wed, Oct 15, 2025 at 8:03 AM

[Quoted text hidden]